

## 26STCV16977 26STCV16977

County: los-angeles

Division: Civil Law and Motion

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### BACKGROUND

This case is a personal injury dispute. Plaintiff

Efren Herrera Lopez alleges that he was injured in a motor vehicle accident caused by Defendant Bernardino Cruz Martinez while driving for Defendant Earthscapes Landscape, Inc.

On May 27, 2026, Plaintiff filed a complaint against Defendant. The complaint alleges three causes of action from the facts alleged above.

On July 7, 2026, Defendants filed a Motion to Strike Portions of Plaintiff's Complaint.

On September 14, 2026, Plaintiff filed an opposition.

Defendants have not filed a reply.

### TENTATIVE RULING

Defendants' Motion to Strike is GRANTED with leave to amend.

### LEGAL STANDARD

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to

strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e).” (Code Civ. Proc., § 435, subd. (b)(2).)

“The court may, upon a motion made pursuant to Section 435,

or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.)

## DISCUSSION

### I.

Meet

and Confer

Before filing a motion to strike, the demurring party shall meet and confer with the opposing party in person, by telephone, or by video conference. (Code Civ. Proc., § 435.5, subd. (a).) The demurring party must file a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 435.5, subd. (a)(3).)

“A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” (Code Civ. Proc., § 435.5, subd. (a)(4).)

Here, Defendants attempted to meet and confer with Plaintiff, but were unsuccessful. (See Alderman Decl., ¶¶ 2-4.) Therefore, the meet and confer requirement has not been satisfied. (See Code Civ. Proc., § 435.5, subd. (a).) Despite this, the Court will consider the merits of the motion. (See Code Civ. Proc., § 435.5, subd. (a)(4).)

### II.

Motion

to Strike

The Court will strike Plaintiff’s request for punitive damages.

To succeed on a motion to strike punitive damages, it must be said as a

matter of law that the alleged behavior was so vile, base, or contemptible that it would be looked down upon and despised by ordinary decent people. (See *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1228-1229.) Civil Code section 3294 provides that punitive damages are available in non-contract actions where defendant is guilty of malice, oppression, or fraud, defined as follows:

1. "Malice" means

conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

2. "Oppression" means

despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

3. "Fraud" means an

intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c).)

Defendants seek to strike

Plaintiff's claim for punitive damages. Defendants contend that Plaintiff has failed to allege intentional and malicious conduct with requisite specificity so as to support an award of such damages.

The Court agrees. In his

complaint, Plaintiff alleges that Defendant Martinez "while driving fatigued and tired, traveling at a high rate of speed and while using a cell phone caused a collision by crashing DEFENDANT'S VEHICLE into PLAINTIFF'S VEHICLE. .

. ." (Compl., ¶ 15.) While these allegations infer negligence on Defendants' part, they do not establish that Defendants intentionally caused the accident or acted with such conscious disregard of likely causing said accident. (See Civ. Code, § 3294, subd. (c)(1); see also *McDonell v. American Trust Co.* (1955) 130 Cal.App.2d 296, 299-300 ["The actor's conduct is in reckless disregard of the safety of another if he intentionally does an act or fails to do an act which it is his duty to the other to do, knowing or having reason to know of facts which would lead a reasonable man to realize that the actor's conduct not only creates an unreasonable risk of bodily harm to the other

but also involves a high degree of probability that substantial harm will result to him.”].) Therefore, Defendants’ alleged conduct does not constitute intentional or malicious conduct. Accordingly, there is no basis for which to request punitive damages.

Plaintiff also argues that allegations inferring Defendant Earthscapes’ prior knowledge of Defendant Hernandez’s poor, negligent driving also are sufficient to support an award of punitive damages. (See Compl., ¶ 52-67.) The Court finds the allegations are simply too broad and conclusory to support an inference that Defendant Earthscapes had such prior knowledge. Accordingly, these allegations also do not provide a basis for which to request punitive damages.

The allegations set forth, accepted as true, are not sufficient to support an award of punitive damages. The motion is granted.

Because there is a reasonable possibility that Plaintiff could successfully amend the complaint, the motion will be granted with leave to amend.

## CONCLUSION

For the foregoing reasons, Defendants’ Motion to Strike is GRANTED with leave to amend. Plaintiff has twenty days to file and serve an amended complaint. If Plaintiff is not amending the complaint, Defendants are to file and serve an answer to the complaint within thirty days.